

U.S. Army Contracting Command – Sierra Army Depot (ACC-SIAD)
Organic Industrial Base (OIB) Modernization
Commercial Solutions Opening (CSO)
Solicitation Number: W912GY-25-S-C001

1. General Information

1.1 Authority

The 2014 Quadrennial Defense Review (QDR) established innovation as a central line of effort in the national defense strategy of the United States. The decisive military advantage of the United States over its adversaries and peer competitors is steadily eroding. Consequently, under 10 United States Code (U.S.C.) § 3458 as implemented by Defense Federal Acquisition Regulation Supplement (DFARS) Subpart 212.70, Contracting/Agreements Officers may acquire innovative commercial items, technologies, or services using a competitive procedure called a Commercial Solutions Opening (CSO). Under a CSO, the Department of Defense (DoD) may competitively select proposals received in response to a general solicitation, similar to a Broad Agency Announcement (BAA), based on a review of proposals by scientific, technological, or other subject-matter expert peers. **Use of a CSO in accordance with DFARS Subpart 212.70 is considered to be a competitive procedure for the purposes of 10 U.S.C. Chapter 221 and Federal Acquisition Regulation (FAR) 6.102.** Finally, Contracting/Agreements Officers shall treat products and services acquired using a CSO as commercial products and/or services. Contracts or agreements under this authority shall be fixed-price, including fixed-price incentive fee.

1.2 Background

The U.S. Army recognizes that investments in producibility and advanced manufacturing will need to continue to be made to support a vast array of crucial activities, including but not limited to acquisition, sustainment, logistics, and ultimately the Army's Modernization of its OIB. To deliver impactful operational results, the US Army must modernize the OIB, particularly in the areas of Agile / flexible facilities, connected digital enterprise, advanced manufacturing, Digital Twin, automation, and cyber security.

With the focus on both "new capabilities" and "operational constructs" convergent manufacturing technologies will accelerate the OIB's capability to get advanced solutions to the Warfighter while enhancing and optimizing the Defense Manufacturing Base for today and tomorrow's missions.

Manufacturing excellence is critical for Army technology dominance and force projection to increase the "Speed of Battle."

This CSO will utilize a solicitation process authorized by DFARS Subpart 212.70. Under this CSO, the DoD will be allowed to competitively procure innovative commercial items, technologies, and services. CSO procedures provide a streamlined acquisition process and simplified contract terms resulting in agreements or FAR-based contracts awarded under Part 12 Commercial Item Procedures. Both traditional and non-traditional defense

contractors may be awarded contracts/agreements under this CSO. Under a CSO, DoD Contracting Officers may competitively select proposals received in response to a general competitive solicitation, similar to a BAA, based on a review of proposals by scientific, technological, or other subject matter experts.

1.3 CSO Procedure

This CSO is a competitive solicitation focusing on various requirements of the Requirement Activities that ACC-SIAD supports through specific Areas of Interest (Aols), which will be incorporated via amendment to this solicitation. The ACC-SIAD CSO is posted on a Government Point of Entry (GPE), System for Award Management (www.sam.gov), and is **continuously open until June 30, 2030**. The Government reserves the right to extend this CSO beyond the open until date by amendment if the authority is extended.

Under this CSO, the DoD may seek solution briefs, presentations/pitches, and/or proposals from traditional and nontraditional business entities for innovative commercial products, technologies, and services, or adaptations/modifications of existing commercial products, technologies, and services to meet U.S. Army needs and improve readiness.. This CSO may result in the award of various types of contracts, which may include, but are not limited to, commercially-available products, technologies, or services immediately available; commercially-available products, technologies, or services fueled by commercial or strategic investment; and concept demonstrations, pilots, and agile development activities that can incrementally improve commercial products, technologies, or services, existing Government-owned capabilities, or concepts for broad defense applications. The Government intends to primarily award FAR-based contracts under Part 12 Commercial Item Procedures but reserves the right to award additional types of contracts/agreements depending on the specific Aol and industrial base responses to the Aol.

The CSO solicitation process may include a multi-phased solicitation and evaluation approach that is dependent upon specific Aols. The Aols are focused topic(s)/categories that will be published separately via amendment to this CSO on the GPE at www.sam.gov. The Government may add Aols against this CSO at any time throughout its duration. Interested companies are encouraged to frequently check www.sam.gov for new Aol postings. The following phases may be used:

Phase 1 – Submission of Written Solution Brief

Phase 2 – Presentation/Pitch (if applicable)

Phase 3 – Request for Commercial Solution Proposal (CSP)

A CSO is considered a competitive process, intended to ensure that competitive procedures are used to the maximum extent practicable. All solution briefs, presentations/pitches, and/or proposals submitted in response to any Aol will be in response to and governed by this CSO.

The CSO outlines the procedures that are available for utilization by the Government for Aols to ensure a competitive process is followed. The competitive process under this CSO may result in a two- or three-phase approach (written solution brief, presentation/pitch (if applicable), and a request for CSP):

Phase 1 – Solution Briefs: A solution brief must be submitted as specified in Section 3.2 of this CSO. The Government will evaluate solution briefs against the criteria stated in this CSO and the specific Aol. The Government will not pay companies for the costs associated with solution brief submissions.

Phase 2 – Presentations/Pitches (if applicable): Companies whose solution briefs are evaluated to be of merit may be invited to provide a presentation/pitch following the instructions provided in Section 3.3 of this CSO. If the Government requires a demonstration, additional information will be provided in the specific Aol highlighting those procedures, otherwise Phase 2 will be comprised solely of the presentation/pitch. The Government reserves the right to request additional technical information to determine if a company has a viable solution for the Government's specific Aol. The Government will not pay companies for costs associated with presentations/pitches, unless otherwise stipulated within the Aol.

Phase 3 – Request for Commercial Solution Proposal (CSP): Those companies that are evaluated to be of merit through Phase 1, Phase 2, or a combination of both, may be invited to submit a full written proposal following the instructions provided in Section 3.4 of this CSO. Requests for a CSP under this CSO are subject to the availability of Government funds. The Government will not pay companies for costs associated with developing CSP submissions in regard to this CSO or resulting Aol, unless otherwise stipulated within the Aol.

NOTE: The Government reserves the right to forgo Phase 1 and Phase 2 based on individual merits and may directly request a CSP from all or some of the proposed solutions. The Government also reserves the right to move expeditiously through the phases based on the merit of submissions if urgent requirements arise.

NOTE: Companies may elect to forgo Phase 1 and Phase 2 and submit a written CSP; however, due to Government budget uncertainties, no specific dollars have been reserved for awards under this CSO. The participating DoD agencies will provide no funding for direct reimbursement of white paper or proposal development costs.

NOTE: During any step of the CSO, the Government may send written questions or comments for companies to address via email, or other suitable communication methods as determined by the Government.

Benefits of the CSO process and the potential for award include:

1. A streamlined application process requiring only minimal corporate and technical information for fast-track evaluation timelines for solution briefs.
2. Negotiable payment terms for non-dilutive capital.

3. Negotiable intellectual property (IP) rights.
4. Secure and direct feedback from end users, mission partners, and users within the DoD to help product teams develop and hone product design and functionality.
5. Each proposal is evaluated on its individual merits rather than on a comparative basis.

2. Definitions

1. **“Area of Interest” (Aoi)** means an announcement posted on the GPE website, which may result in the award of various types of contracts/agreements that will be dependent on the specific Aoi requirement.
2. **“Commercial Solutions Opening” (CSO)** is a competitive procedure Contracting/Agreements Officers may use to acquire innovative commercial products or services.
3. **“Commercial Solution Proposal” (CSP)** is a commercial proposal that is submitted in response to an Aoi that is governed by a CSO. CSPs may be requested as a result of solution briefs and/or presentations/pitches.
4. **“Nontraditional Defense Contractor”** is defined in 10 U.S.C. § 3014 as an entity that is not currently performing and has not performed, for a least the one-year period preceding the solicitation of sources by the DoD for the procurement or transaction, any contract or subcontract for the DoD that is subject to full coverage under the cost accounting standards prescribed pursuant to 41 U.S.C. § 1502 and the regulations implementing such section. This includes all small business concerns under the criteria and size standards in 13 C.F.R. § 121.
5. **“Nonprofit Research Institution”** means a nonprofit institution, as defined in 15 U.S.C. § 3703 as an organization owned and operated exclusively for scientific or educational purposes, no part of the net earnings of which ensures to the benefit of any private shareholder or individual.
6. **“Small Business Concerns”** is defined in the Small Business Act (15 U.S.C. § 632).
7. **“Innovative”** means any item that is—
 - a. A commercially available technology, process, or method, that allows for expeditious production/distribution that is new as of the date of submission of proposal; or
 - b. A new technology, process, or method, including research and development that is new as of the date of submission of proposal; or

- c. A new application or adaptation of an existing technology, process, or method as of the date of submission of a proposal; or
- d. An existing item within the production/commercialization phase (i.e. after design or development and before widespread Government adoption) as well as adaptations of existing commercial products.

3. Guidelines for Solution Briefs, Pitches, and Proposals

3.1 General Guidelines

Unnecessarily elaborate brochures or proposals are not desired.

When applicable, use of a diagram(s) or figure(s) to depict the essence of the proposed solution is strongly encouraged.

Companies may submit multiple solution briefs in response to any single Aol if each submission represents a separate and distinct concept. Individual solution briefs may only address one concept based on the stated Aol.

The period of performance for any solution brief or CSP submitted under this CSO shall generally be no greater than 12 months (unless otherwise specified in the Aol).

Technical data with military application may require approval, authorization, or license for lawful exportation.

3.1.2 PROPRIETARY INFORMATION

The USG acknowledges its statutory obligation (18 U.S.C. §1905) to protect confidential information provided to the Government. Pursuant to this statute, the USG is willing to accept any PROPRIETARY (e.g. trade secret) restrictions placed on qualifying data forwarded in response to the questionnaire and to protect the data from unauthorized disclosure subject to the following:

- Qualifying data must be clearly marked “PROPRIETARY” and accompanied by an explanatory text, so the Government is clearly notified of limitations being placed on the data
- Mark only data that is truly confidential. Use circling, underscoring, highlighting or any other appropriate means to indicate those portions of a single page which are to be protected.
- Do not mark data that is already in the public domain or is already in possession of the USG or third parties on an unrestricted basis.
- Do not submit classified data in response to this market survey.
- The USG is not obligated to protect unmarked data. Additionally, marked data that is already in the public domain or in the possession of the U.S. Government or third parties, or is afterward placed into the public domain by the owner or another party through no fault of the U.S. Government will not be protected once in the public domain. Data already in

the possession of the USG will be protected in accordance with the USG's rights in the data.

- The U.S. Government sometimes uses support contractors in evaluating responses. Consequently, responses which contain proprietary information may receive only limited or no consideration since the respondent's marking of the data as "PROPRIETARY" will preclude disclosure of same outside the U.S. Government and therefore will preclude disclosure to these support contractors assisting the evaluation effort. The U.S. Government will use its best efforts to evaluate those responses that contain proprietary information without using support contractors consistent with the resources available.

NOTE: Foreign-Owned businesses may independently submit a solution or do so as part of a teaming arrangement with one or more United States-Owned businesses. However, the ability to obtain a contract/agreement based upon a submission may depend upon the ability of the Foreign-Owned business to obtain necessary clearances and approvals to obtain proscribed information.

Questions regarding the objectives or preparation of the solution brief should be addressed to the points of contact (POCs) listed in the respective Aol.

Submissions must be submitted electronically as prescribed in the respective Aol.

Submissions sent through other channels or after the prescribed Aol open period has ended will not be considered, reviewed, nor evaluated.

Entities submitting solution briefs that are not chosen for the presentation/pitch phase or the CSP phase will be notified in writing as soon as practicable. Further verbal feedback may be provided, upon request, at the Contracting/Agreements Officer's discretion.

3.2 Phase 1 – Solution Brief

3.2.1 Content:

Unless otherwise stated in the specific Aol, solution briefs shall not exceed five (5) single-sided written pages using 12-point font or, alternatively, solution briefs may take the form of briefing slides which should not exceed fifteen (15) slides. Solution briefs must include the following:

1. Title Page: Provide a title page that includes Company Name, Title, Date, Point of Contact Name, E-Mail Address, Phone, and Address. Specifically identify the Aol for which the solution brief is submitted.
2. Executive Summary: Provide an executive summary of the technology or service.
3. Technology Concept: Show and/or describe how your proposed solution or potential new capabilities represent an application of innovative commercial products, innovative commercial technologies and services, or adaptations/modifications of existing commercial product technologies and services to the Aol. Describe the unique aspects of your technology and the proposed work

as it relates to the Aol. Identify whether the effort includes the pilot or demonstration of existing commercial technology (identified as commercially ready and viable technology), or the development of technology for potential defense application. If development or adaptation is proposed, identify a suggested path to mature the technology. Identify aspects of your proposal, to include data and software, which may be considered proprietary.

4. Price: Provide a rough order of magnitude price for the proposed solution.

NOTE: While the title page does not count against the page/slide limit, the executive summary, technology concept, and price sections do.

3.2.2 Basis of Evaluation:

Solution brief evaluation criteria are listed in order of importance from top to bottom. Individual solution briefs will be evaluated against the evaluation criteria described below:

1. Responsiveness of the solution brief in addressing the Aol with a commercially available product, process, and/or service readily available to meet the Government's immediate needs;
2. The technical merit of the proposed solution, including the extent to which the proposed solution is unique and/or innovative to Government application; and
3. The extent to which funding is available for the proposed effort.
4. The proposed milestone schedule and its ability to meet the Aol need within a relevant time period

Solution briefs will be evaluated on the evaluation criteria listed above, not against other solution briefs submitted in response to the same Aol. The Government may elect to use external market research in the evaluation of a company's viability. The Government reserves the right to select "all, some, or none" of the solution briefs submitted in response to the Aol. The Government will attempt to complete the Phase 1 evaluation of solution briefs within 30 calendar days of the closing of the submittal period and will attempt to notify the company of the results of the evaluation as soon as practicable.

Additional technical evaluation criteria specific to a particular project may be used. In these instances, the additional criteria will be posted within or as an attachment to the Aol on the GPE website.

Upon review of a solution brief, the Government may elect to invite all, some, or none of the proposed solutions into Phase 2, the presentation/pitch, or move directly into Phase 3 by requesting a CSP based on the merits of the solution brief. In Phase 2, companies are invited to pitch and further discuss their proposed concept/technology/solution in person or virtually. During Phase 2, the Government may request and/or provide additional information from/to the company.

3.3 Phase 2 – Presentation/Pitch (if applicable)

3.3.1 Content:

In Phase 2, if applicable, companies must provide a presentation/pitch to demonstrate and provide further details on the technical and business viability of their proposed solution. The Government reserves the right to request an in-person, virtual, or paper presentation/pitch depending on the specific requirement. Specific requirements of the presentation/pitch will be covered in the Aol. If the Government requires a demonstration, additional information will be provided in the specific Aol, highlighting those procedures. Otherwise, Phase 2 will be comprised solely of the presentation/pitch. In addition to the presentation/pitch, the government, at its discretion, may request an additional written submission to supplement/clarify the information provided in the Phase 1 Solution Brief. During the Phase 2 presentation/pitch, the company must detail/address the following:

1. A description or demonstration of how the proposed solution represents an innovative application of commercial technology/services to the Aol.
2. A rough order of magnitude (ROM) +/-15% price and notional schedule.
3. Any IP involved in the effort and associated restrictions on the Government's use of that IP.
4. Additional information/detail from the company's Phase 1 Solution Brief, as specified in the Government's invitation to Phase 2.

3.3.2 Basis of Evaluation:

Individual presentations/pitches will be evaluated against the evaluation criteria below and not against any other presentations/pitches held under the same Aol. Presentation/pitch submissions shall be valid for no less than 90 days after presentation/pitch evaluation. The Government will aim to complete evaluation of presentations/pitches within 30 calendar days of the presentation/pitch. Individual Review Panels (IRPs) will be determined for each Aol posted under this CSO. After completing the evaluation of presentation/pitch submissions, the Government will notify the company that: (1) it may submit a CSP for evaluation in Phase 3; (2) its proposed concept/technology/solution is not of continued interest to the Government and it will not be required to submit a Phase 3 CSP for evaluation; or (3) its proposed concept/technology/solution is of continued interest to the Government, but is not currently eligible for an invitation to Phase 3 CSP submission due to the current lack of Government resources and/or funding.

NOTE: If Government funding or resources are not assigned to a Phase 3 CSP within 90 days after presentation/pitch evaluation, the Government will provide a notification of non-eligibility and officially close the Aol selection process.

Presentation/Pitch evaluation criteria are listed in order of importance from top to bottom.

Presentations/pitches shall be evaluated/scored on the following factors:

1. Level of relevancy of the solution in addressing the Aol with a commercially available product and/or process;
2. The technical merit of the proposed solution adequately addresses the Aol need(s) and demonstrates feasibility for the Government to pursue the proposed solution;
3. Level of uniqueness, and/or innovative approach to solve the Government's need;
4. Level of technical risk/maturity;
5. Level of risk placed with the proposed ROM; +/-15%
6. Level of risk in the proposed milestone schedule and its ability to meet the Aol need within a relevant time period;
7. Level of risk in the company's viability and business solution; and
8. Level of potential risk in anticipated IP and data rights assertions.

3.4 Phase 3 – Commercial Solution Proposal (CSP)

The third and final Phase of the CSO process is the CSP. Through Aols, companies will be invited to submit a CSP based on the defined CSO phased approach that will be utilized. Companies must ensure that the CSP is valid for at least 120 days from the submission date. If necessary, companies invited to submit a CSP may be advised to schedule a teleconference with technical and contracting staff to address any feedback contained in the request for CSP. The CSP must be prepared in two separate Volumes as follows: Volume I Technical and Volume II Price. Each volume shall have its separate related attachments. Additional applicable forms will be provided in the Aol.

3.4.1 Content

Based upon the results of market research, Phase 1 and/or Phase 2 evaluation(s) above, the Government may request a CSP. If that occurs, a company or companies will be invited to develop and submit a written proposal as well as negotiate appropriate terms and conditions, as applicable, governing the requirement. At this stage, the selected companies may discuss proposal development details during the proposal writing process with their assigned Government expert(s) or Government teaming partner(s).

Additionally, companies are invited to provide their own internal terms and conditions that may be consolidated with those of the Government. This includes, but is not limited to, Service License Agreements (SLA) and/or User License Agreements (ULA).

Companies should note that there are certain terms and conditions the Government may be unable to accept. However, projects awarded through the CSO may provide flexibility

to adopt customary industry standards where it is otherwise legal and meets the Government's general public responsibility.

3.4.1.1 Volume I – Technical:

Companies shall not include any cost information in the Technical Volume.

The Technical Volume shall include a detailed work plan indicating how each aspect of the objectives is to be accomplished. The Technical Volume shall be in as much detail as the company considers necessary to fully explain its proposed technical approach or method, including all assumptions utilized to develop its proposed solution and associated costs. The Technical Volume shall reflect a clear understanding of the nature of the work being undertaken. The Technical Volume must include information on how the project will be organized, staffed, and managed.

Information shall be provided that demonstrates your understanding and management of important events or tasks. The Technical Volume must include a list of suggested deliverables and deliverable dates.

NOTE: The Government reserves the right to further define the required technical proposal content based upon the specific Aol requirements.

3.4.1.2 Volume II – Price:

The Price Volume must contain sufficient information to allow the Government to perform a basic analysis of the proposed cost or price of the work. If the proposal includes a time and materials contract line item, the proposal must include labor categories and the corresponding number of direct labor hours; fixed hourly rates that include wages, overhead, general and administrative expenses, and profit; and costs for materials, supported by vendor quotes, supplier agreements or other bases of estimate. The Government reserves the right to request any other price data or supporting cost information the Government deems necessary to determine the total overall price fair and reasonable. This can include, but is not limited, to commercial price catalog(s), previous commercial sales receipts, and/or other proprietary information to help the Government determine reasonableness and future budgetary cost estimates.

NOTE: The cost of preparing proposals in response to this CSO is NOT considered a direct charge to any resulting Aol award or any other contract/agreement. Proposal preparation costs are not recoverable.

NOTE: The Government reserves the right to further define the required price proposal content based upon the specific Aol requirements.

3.4.2 Proposal Basis of Evaluation:

Proposals will be reviewed as received by a Government subject matter expert(s). In all cases, proprietary information will be protected from competitors. The CSO evaluation criteria is listed in order of importance from top to bottom. The Government subject matter expert(s) will first review the proposal for adequacy and eligibility to determine the extent to

which the following requirements are met:

1. The merit and risk elements of the proposed technical approach are acceptable and address the priorities outlined in the applicable Aol;
2. The proposal performance schedule is realistic and adequate; and
3. The proposed price is fair and reasonable.

NOTE: The Government reserves the right to further define the basis for evaluation based upon the specific Aol requirements.

3.4.3 Proposal Evaluation Rating:

1. Volume I - Technical proposal will be evaluated and categorized as follows:

- a. **Acceptable:** The technical proposal has been evaluated and deemed appropriate for additional consideration and discussion. The proposal is generally considered well-conceived, scientifically or technically sound, and important to program goals and objectives. Proposal submissions given this designation may proceed into negotiations or directly to the award process.

Note: An acceptable rating does not guarantee contract/agreement award. The following will also be taken into consideration: program priorities, negotiations, and availability of funds.

- b. **Unacceptable:** The technical proposal has been evaluated and deemed inappropriate for additional consideration and discussion at this time. Proposals given this designation are not technically sound or do not meet program priorities and will be rejected.

2. Volume II - Price proposal will be evaluated and categorized as follows:

- a. **Fair and Reasonable:** The price proposal has been evaluated and deemed fair and reasonable. Proposal submissions given this designation may proceed to the award process.

Note: A fair and reasonable price determination does not guarantee contract/agreement award. The following will also be taken into consideration: program priorities, negotiations, and availability of funds.

- b. **Not Fair and Reasonable:** The price proposal has been evaluated and deemed to not be fair and reasonable. Proposal submissions given this designation may not proceed to the award process without negotiations that result in a fair and reasonable determination.

4. Awards

4.1 General Guidelines

Upon favorable evaluation and funds availability, the Government may choose to make a fixed price award using FAR Part 12 Acquisition of Commercial Items or other authority. The Contracting/Agreements Officer reserves the right to negotiate directly with the company on the terms and conditions prior to execution of the resulting contract/agreement, including payment terms, and will execute the contract/agreement on behalf of the Government. Be advised, in accordance with FAR 1.602, only a Contracting Officer has the authority to enter into, or modify, a binding contract on behalf of the United States Government.

To receive either a fixed price award using FAR 12 Acquisition of Commercial Items or other authority:

1. A company must have a Unique Entity ID (UEI) and must register in the System for Award Management (SAM) prior to receiving an award or agreement. Companies are advised to commence SAM registration upon perusing an Aol announcement. A company must also register in the prescribed Government invoicing system (PIEE (<https://piee.eb.mil>)). This cannot occur without an active SAM registration.
2. A company must be determined to be responsible by the Contracting/Agreements Officer and must not be suspended or debarred from award by the Federal Government nor be prohibited by Presidential Executive Order and/or law from receiving an award.

Receipt of a request for CSP does not guarantee that a company will receive an award and the Government reserves the right, at any point prior to award of a contract/agreement, to cancel the request for CSP. The Government reserves the right to make awards to all, some, or none of the selected solutions.

NOTE: The Government reserves the right to amend this CSO solicitation as necessary amendments for emerging requirements and changes in authority occur. Amendments to this CSO will be posted through the GPE.

4.2 Procurement Integrity Act (PIA)

The CSO solicitation process for FAR contracts is covered by the Procurement Integrity Act (PIA). PIA is implemented for FAR contracts through FAR Part 3.104. Accordingly, the CSO competitive solicitation process and awards made thereby must adhere to the ethical standards required by the PIA.

5 Contact Information:

CSO POC/Contracting Officer: Ms. Courtney Serra, courtney.l.serra.civ@army.mil

CSO POC: Ms. Kimberly Hunter, kimberly.a.hunter.civ@army.mil

6 General Areas of Interest (Aols):

Areas of Interest (Aols) will be posted separately as an amendment to this CSO posting.
Please check SAM.gov for future announcements